Socrative

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy Policy

02. Terms & Conditions

Competitor website

01 | Privacy Policy

https://www.socrative.com/privacy

Webpage text snapshot | Retrieved 10 October 2026

Privacy Policy

Who Are We?

We are Showbie Inc., the provider of Socrative. Our head office is located at #436, 3428–99 Street N.W.Edmonton, AB, Canada T6E 5X5.

Socrative is a web-based and tablet app that can be used by teachers to assess student understanding in real-time through activities such as quizzes and polls. There are free and paid versions.

Showbie is a Data Controller with respect to Personal Data which we collect and process for our own purposes in order to provide our products and services to customers. Showbie is a Data Processor when processing Personal Data on behalf of our customers, for example, schools, teachers etc.

Our Privacy Pledge

Showbie Inc. (“Showbie”, “we” or “us”) provides certain services including the Socrative application (the “Application”) and related software services as more particularly described in our Terms of Use (“Services”). Your trust is key to the success of our business. We take privacy and confidentiality very seriously and safeguard the Personal Data of our users in accordance with this Privacy Policy.

This Privacy Policy discusses the high degree of importance that we place on your privacy, including how we collect, use, and disclose Personal Data as well as the rules and conditions related to privacy of information while using our Services.

This Privacy Policy does not apply to the practices of companies that we do not own or control. Our customers are responsible for maintaining their own privacy policies governing their collection, use, and disclosure of Personal Data and are responsible for ensuring that they have obtained the necessary authorizations and consents for any Personal Data made available to us for use in accordance with this Privacy Policy.

This Policy sets out the basis on which any Personal Data we collect from you, or from others, will be processed by us. Please read the following carefully to understand our practices regarding your Personal Data and how we will treat it.

Details of Personal Data Processing

In the course of our business, we collect and process the Personal Data as set out in this Policy. This may include data we receive directly from a Data Subject (for example, by completing forms or by corresponding with us by mail, phone, email, or otherwise) and data we receive from other sources (including, for example, business partners, sub-contractors in technical, payment and delivery services, credit reference agencies, government bodies, and others).

We will only process Personal Data for the specific purposes set out in this Policy or for any other purposes specifically permitted by the applicable law. We will notify those purposes to the Data Subject when we first collect the data or as soon as possible thereafter.

You may give us Personal Data where you are a user of our Services, a teacher, school or other third party interacting with us. We use your Personal Data for the following purposes:

To provide and maintain our Application and Services

To notify you about changes to our Application and Services

To allow you to participate in interactive features of our Application and Services when you choose to do so

To provide customer support

To gather analysis or information so that we can improve our Application and Services

To monitor the usage of our Application and Services to detect, prevent, and address security issues

Use of AI-supported tools

We may use AI-supported tools to assist with certain limited aspects of our operations, including customer support, internal analysis, and the improvement of our Application and Services.

Such tools may be used to summarise or analyse customer communications (such as support requests), assist in the preparation of draft responses, and generate aggregated insights to support product development and service quality. This processing is limited in scope and designed to minimise the use of Personal Data.

AI-supported tools are used solely for internal operational purposes and are not intended to process student Personal Data as part of the delivery of our Services. We implement appropriate organisational and technical measures to minimise the risk of such data being included in AI-assisted processing.

All AI-assisted outputs are subject to human review. We do not use AI systems to make solely automated decisions that have legal or similarly significant effects on individuals.

Further details of the Personal Data we collect, details of the processing activity, and the lawful basis for each is as follows:

When you become our customer the processing of your information, and/or that of your team who you nominate to liaise with us, will become a condition of the contract between us as we require certain information in order to be able to provide you with our services (e.g. contact information). In those circumstances, if you do not provide your information when requested, we may be unable to provide our Services to you.

Representatives of customers (schools, districts, businesses, etc.):

We require the following information to set up your accounts: first name, last name, email address, phone number (optional), country, and school name. We use this data to set you up as a customer on our systems and to liaise with you and your teachers about projects that we are undertaking with you. We also process payment information to facilitate payment of our Services; for internal and external auditing and to make appropriate financial returns to revenue; to process payment of invoices etc. Our payment system also collects the IP address of users who pay online to facilitate credit card location verification.

We collect, use and disclose your Personal Data to provide the Services to you via the Application, and to administer your account in accordance with: (a) this Policy, (b) any other agreement you may have entered into with us, and (c) applicable laws and regulations. It is your responsibility to ensure that we are kept informed of the correct and current contact information for you.

The lawful basis for this processing is the agreement you have agreed to, or if you have not entered into an agreement with us, our legitimate interests in providing the Application and Services through our agreement with the customer.

When corresponding with us by phone, e-mail or otherwise, we ask you to disclose only as much information as is necessary to provide you with our Services or to submit a question/suggestion/comment in relation to our Services or products.

The lawful basis for this activity is our agreement with your or our legitimate interests in providing our Application and Services in addition to our legitimate interests in improving our Application and Services based on your question/suggestion/comment.

If you are a Teacher/Administrator:

We collect and process your first name, last name, email address, phone number (optional), country, school name, school type, user ID, password, activity within the service. Your first and last name will be visible to other teachers within your team to facilitate collaboration.

If you join a Team, your email visibility will depend on your type of account. In organization-managed accounts, email addresses are only visible to administrators by default. In individual-managed accounts, email addresses are visible to all team members by default. Before joining a Team, users are informed that their email may be visible to other members. Administrators in organization-managed accounts can manage email visibility settings for their teams. Email addresses may be shared with new and existing team members and guests as part of team collaboration, as well as for account management, support, or as otherwise specified in this Privacy Policy.

We also process payment information to facilitate payment of our Services; for internal and external auditing and to make appropriate financial returns to revenue; to process payment of invoices etc. Our payment system also collects the IP address of users who pay online to facilitate credit card location verification.

When corresponding with us by phone, e-mail or otherwise, we ask you to disclose only as much information as is necessary to provide you with our Services or to submit a question/suggestion/comment in relation to our Services or products. Users can log in to our Services directly using the Socrative app/web page or by using certain specified third-party accounts such as Google and MasteryConnect. We may add other third-party sign-on functionality in the future. By signing on in using a third-party account, we use your name, profile picture (if available), and email address to authenticate your identity and to pre-populate your profile.

Some third-party services, such as Google, give you the option to post or share information about your use of the services to your third-party account. The settings for that kind of sharing are outside of our Services. It's up to you to check the sharing and privacy settings on any third-party accounts.

The lawful basis for this processing is the Terms of Use you have agreed to, or our legitimate interest in facilitating the provision of the Applications and Services to our customers, including processing payment.

If you input the Personal Data of others into the application, you are responsible for ensuring that you have obtained any permissions or authorizations for any Personal Data of others that you input or send through the Application.

We will communicate with you regarding our Services and your account. We will do this via the internet and via the email address you have provided. You acknowledge that data and information transmitted over the internet is susceptible to error or security breaches.

The lawful basis for this activity is the agreement you have entered into or our legitimate interests in providing you with important information about the Services and your account.

Showbie makes available certain AI-features which gives you the possibility to generate quiz content (quiz name, questions, and answers), based on prompts provided by you. Any generated content must be approved by you before it may become visible to students. These AI features are based on services from third party general purpose AI providers. By using the features, limited personal data concerning your use of the Services and your account will be processed. The AI features will not be used for grading student work, and only limited, anonymized student data will be processed by using the features. The lawful basis for our provision of the AI services to you is our legitimate interest in allowing teachers to utilize up to date features in our Services. We provide you with an option to out-out from having the AI features made available to you in the Service, which reflects your right to object to our processing of your personal data when the processing is based on a legitimate interest.

If you are a Student:

Showbie collects limited Personal Data from minor students only as needed for the operation and management of the Services provided by Showbie, and only where that student's school board, educational institution, or teacher has contracted with Showbie to do so.

Data we collect from students:

Name, if provided by the student when prompted in an activity

Students' activities within the service, such as quiz results

Any correspondence through phone, e-mail or otherwise for support purposes

Data that could be inferred from the teacher data:

Name when provided by the teacher in a rostered room

Email when provided by the teacher in a rostered room

Student ID when provided by the teacher in a rostered room

Log-in details (username and encrypted password) when provided by the teacher in a rostered room

School name

Location of school

Class or group membership when students are linked through Showbie integration

Limited student personal data if part of a user research interview

Teachers may upload (import) a class roster which includes unique usernames and encrypted passwords for each student. When not importing a class rosters, teachers can provide a code for students to access the app, and creating a student profile is not required.

Teachers will have access to class rosters and students' activities within the service, such as quiz results.

Teachers may share template quizzes, tests, etc. with other persons using Socrative, but these templates do not contain any Personal Data about students, only the name of the teacher author.

When corresponding with us by phone, e-mail or otherwise, we ask you to disclose only as much information as is necessary to provide you with our Services or to submit a question/suggestion/comment in relation to our Services or products.

(a) It is the responsibility of our customers, e.g. the school board, educational institution, or teacher to obtain the consent of parents/legal guardians prior to our collection of such student Personal Data. If you are a minor student, do not upload or send any Personal Data about yourself or other students to Showbie, other than what is requested upon signing up for the Services. If we discover we have the Personal Data of a student without consent of a parent/legal guardian, or information in excess of what we request upon sign-up, we will permanently destroy that information as quickly as possible. If you believe a student may have provided us Personal Data without consent of a parent/legal guardian, or information in excess of what we request upon sign-up, please contact us at privacy@socrative.com.

(b) Students can sign up to our Services with a username and password. Your teacher may instead provide you with a code, in which case you will not be required to sign up to access Socrative. Students are unable to see the activities of other students, irrespective of whether or not they are members of the same course group on Socrative.

(c) The Application allows students and teachers to interact. This information will also form part of the Personal Data of students. However, we are a Data Processor of this Personal Data on behalf of the students' school board, educational institution or teacher who has contracted with us, and that school board, educational institution, or teacher is the Data Controller.

d) Showbie conducts a small number of user research interviews to gather constructive feedback from the users of the Socrative services. The feedback is used to improve and develop the services. Before conducting a user research interview we ask for the consent from those we interview, which are mostly teachers or administrators. When conducting the interview, some student data may be processed. This may occur as a natural part of the interview, e.g., if a teacher shares their Socrative interface with us during the interview. Showbie will make every effort to limit the collection of student data in interviews and the scope of the research is never targeted to student data. The incidental processing of student data may include the following: name of the organization, geographic location, age of students, subjects taught, extracurriculars participated in, example student work (uploaded files, annotated documents, comments), student names, student profile pictures, student class enrollment. For the processing of student data as part of the user research interviews, Showbie is the Data Controller.

When we act as a Data Controller for the purposes set out above, the lawful basis for the processing is the agreement entered into with us, or our legitimate interests in providing the Application and Services through our agreement with your school board, educational institution, teacher, or the like.

Information collected as part of our sales and marketing efforts:

We collect, use and disclose Personal Data of administrative users or teachers for marketing purposes provided it does not direct advertising to any student users, and provided that student Personal Data is not used or disclosed. We collect Personal Data relating to administrative users or teachers for relevant product or marketing communications. We will never direct advertising to students or disclose student Personal Data for this purpose. Users may unsubscribe from marketing notifications at any time.

We collect, aggregate, and anonymize data for system monitoring, quality control, marketing, and product improvement purposes, provided it does not entail processing of any Personal Data of users.

The lawful basis for this activity is legitimate interest in selling and marketing our services when advertising to existing customers and consent when advertising to new and potential customers.

Cookies and Analytics:

We use both session-based and persistent cookies to track information about your use of the Application and our Services which allow us to make it easier for you to navigate the Services, or allow us to track your activities related to your use of the Application and our Services. We may also use third party analytics tools and technologies to track and analyze data from the Application and our Services. Read more about our use of cookies in our Cookie Policy available here.

Access to and Transfer of Personal Data

If you are located outside Canada or the United States and choose to provide information to us, note that we transfer the data, including Personal Data, to countries such as Canada and the United States.

All Personal Data processed by Showbie related to the Application and Services provided to our customers is stored in secure data centres hosted by Amazon Web Services (AWS) in the United States, with backup servers in South America, Asia and Australia. The full list of approved sub-processors, used in our capacity as a Data Processor, is listed in the GDPR compliant Data Processing Addendum (based on the EU Commission standard contractual clauses (2021/914)) we execute with all customers residing in the EEA.

In our capacity as a Data Controller, we rely on trusted third-party service providers such as for internal business operations, account administration, billing, improvement of services, and marketing. In this respect, our trusted third-party service providers may have access to relevant Personal Data in order for them to provide their services to us.

A current list of Socrative subprocessors, including information about their role and processing locations, is available here.

Where the customer is located in the EEA and the service provider is located in a country outside the EEA (“third country”) this will involve transferring of Personal Data to such a third country.

Transfers to Showbie Inc., located in Canada, are covered by the EU Commissions Adequacy Decision (2002/2 EC). Showbie will not transfer Personal Data to third countries that do not offer adequate protection unless appropriate safeguards are established, such as EU Standard Contractual Clauses.

In addition, we may disclose your Personal Data to third parties:

In the event that we sell or buy any business or assets, we may disclose your Personal Data to the prospective seller or buyer of such business or assets;

If we, or substantially all of our assets, are acquired by a third party, information held by us about our customers will be one of the transferred assets;

If we are under a duty to disclose or share your information in order to comply with any legal obligation, or in order to enforce or apply our terms of use and other agreements; or to protect our rights, property, or safety, our customers, or others. This includes exchanging information with other companies and organisations for the purposes of fraud protection and credit risk reduction;

As part of a project with other companies in the Showbie Group.

We may also be required to disclose Personal Data in response to a lawful request by public authorities, including to meet national security or law enforcement requirements. When acting in the role as a Data Processor we are committed to using reasonable efforts in redirecting any access requests received from governmental authorities or to notify the relevant customer about the request, unless we are prevented by law from doing so. In any case, we will challenge any overbroad or inappropriate disclosure and disclose only the minimum amount of Personal Data necessary to satisfy an access request.

How Long Do We Keep Hold of Your Information?

In our capacity as a Data Controller, the time periods for which we retain your data depends on the type of personal data and the purposes for which we use it. We will retain and use your Personal Data to the extent necessary to provide the Services and to comply with our legal obligations (for example, if we are required to retain your data to comply with applicable laws), resolve disputes, and enforce our legal agreements and policies.

We will also retain usage data for internal analysis purposes. Usage data is generally retained for a shorter period of time, except when this data is used to strengthen the security or to improve the functionality of our Services, or we are legally obligated to retain this data for longer time periods.

Our Data Controller customers, on whose behalf we process Personal Data acting as a Data Processor, collect and keep Personal Data. For further information on this, please contact your teacher, your school's Socrative Administrator or the like.

Security of Personal Data

The security of your data is important to us but no method of transmission over the Internet or method of electronic storage is 100% secure. We will use appropriate technical and organizational measures to maintain the confidentiality, integrity, and availability of your Personal Data. We have implemented a personal data breach response protocol to promptly address any security incidents and personal data breaches that occur. This protocol includes initiating necessary remediation measures to minimize harm and restore security. In the event of a personal data breach, we will assess the level of risk and notify the relevant supervisory authority within 72 hours where required under applicable law. If the breach is likely to result in a high risk to the rights and freedoms of affected Users, they will also be notified without undue delay. We continuously monitor and enhance our security controls to protect user data and prevent unauthorized access.

"Do Not Track" Signals

We do not support Do Not Track ("DNT"). Do Not Track is a preference you can set in your web browser to inform websites that you do not want to be tracked.

You can enable or disable Do Not Track by visiting the Preferences or Settings page of your web browser.

What are Your Rights with Respect to Your Personal Data?

You have the following rights:

To request access to or a copy of the Personal Data held by us relating to you (a "Data Subject Access Request"). To make a Data Subject Access Request, please email us at privacy@socrative.com.

To request that data is rectified, corrected or erased (subject to certain statutory restrictions).

To restrict the processing of Personal Data in certain circumstances.

To object to processing of Personal Data based on public interest grounds or based on legitimate interest of the data controller (subject to certain statutory exceptions).

To data portability, that is, to receive Personal Data about you and have it transmitted to another data controller, subject to certain limitations.

Where your data is processed based on your consent, you have the right to withdraw your consent at any time. However, this will not affect the lawfulness of processing based on consent before your consent was withdrawn.

Whenever possible, you can update your Information directly within your account settings section. If you are unable to change your information, please contact us to make the required changes.

To avail of any of the rights set out above, you may make a request to privacy@socrative.com. For the protection of privacy, suitable proof of identification will be required before a request can be processed.

We maintain an internal process for reviewing and responding to privacy-related complaints and concerns in accordance with applicable data protection laws.

Where we act as Data Processor and not Data Controller, we will refer your request to the applicable Data Controller, which, if you are a student, may be your teacher, school district, your educational institution or the like.

You also have the right to make a complaint to a supervisory authority. For a list of Supervisory Authorities in Europe, please see this list on the European Commission's website.

In Canada you can contact the Office of the Privacy Commissioner of Canada.

What Will Happen if We Change Our Privacy Policy?

This Policy may change from time to time, and any changes will be posted on our website and will be effective when posted. This Policy was last updated on July 9, 2025.

How can you contact us?

If You have questions about this Privacy Notice or wish to contact Socrative for any reason, please contact us at:

Privacy Officer Socrative, Showbie Inc. #436, 3428–99 Street N.W.Edmonton, AB, Canada T6E 5X5. Email: privacy@socrative.com

Definitions

Personal Data

Personal Data means any information relating to an identified or identifiable natural person. An identifiable natural person is one who can be identified, directly or indirectly.

Usage Data

Usage Data is data collected automatically either generated by the use of the Services or from the Service's infrastructure itself (for example, the duration of a page visit).

Cookies

Cookies are small pieces of data stored on a User's device.

Data Controller

Data Controller means the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of the personal data.

For the purpose of this Privacy Policy, Showbie is both a Data Controller, but Showbie may in other situations act as a Data Processor of your data.

Data Processor (or Service Providers)

Data Processor (or Service Provider) means a natural or legal person, public authority, agency or other body (other than an employee of the Data Controller) which processes Personal Data on behalf of the Data Controller.

We may use the services of various Service Providers to process your data more effectively.

Data Subject

Data Subject is a living individual who is the subject of Personal Data.

User

The User is the individual using our Application or Services. The User is typically the Data Subject, who is the subject of Personal Data.

Personal Data Breach

A breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, personal data transmitted, stored, or otherwise processed.

02 | Terms & Conditions

https://www.socrative.com/terms

Webpage text snapshot | Retrieved 10 October 2026

Terms and Conditions

These Terms of Use (“Terms”) form a legal agreement between Showbie Inc., Showbie US Inc. (“Showbie”) and the user (“You“) of Showbie’s Socrative Services, as defined below. Please read these Terms carefully before downloading or using the Services. These terms replace all previous terms.

BY DOWNLOADING OR USING THE SOCRATIVE SERVICES, YOU AGREE TO BE BOUND BY THESE TERMS.

1.0 Definitions

1.1 “Access Codes” are Class Codes, Group Codes or Parent Codes as defined below.

1.2 “Application” means the web-based or mobile Socrative application provided by Showbie, as part of the Services.

1.3 “Authorized Users” is defined in Section 2.3.

1.4 “Rooms and Roster Codes” are codes issued by Showbie to provide access to Authorized Users.

1.5 “QR Codes” are codes issued by Showbie to provide access to Student Users.

1.6 “Personal Data” means any information relating to an identified or identifiable natural person. An identifiable natural person is one who can be identified, directly or indirectly.

1.7 “Educational Institution” means a preschool, K-12 school or post-secondary institution.

1.8 “Services” means, as applicable, the Website, the Application and/or the services provided by Showbie in connection with the Website and Application, including services of data upload, download, usage of Quiz Shop, hosting and syncing through Showbie’s servers or third-party data hosting services selected by Showbie.

1.9 “Website” means the Socrative site through which Showbie provides the Socrative Services.

2.0 Services

2.1 Account. Access to certain functionality and Services requires a valid account from Showbie and is subject to payment of the applicable license fee(s). Some features may be available on a trial basis to qualified users, as set forth below. You are responsible for maintaining the confidentiality of Your account information, password and login, including, if relevant, logins distributed to Authorized Users. You are responsible for all uses of Your account. You agree to immediately notify Showbie of any unauthorized use of Your account.

Each user account is issued to a single natural person and may be used only by that individual. Shared, pooled, or concurrent use of a single account is not permitted under any circumstances. Sharing login credentials or allowing more than one individual to access the Services using a single account is strictly prohibited and constitutes a material breach of these Terms. We reserve the right to audit account usage and may suspend or terminate access, or require the purchase of additional licenses, if we determine that this policy has been violated.

A limited use trial account (i.e. free account) permits use of the Services by individual teachers for themselves and their students within Educational Institutions. If You are not an active teacher or instructor, but would like to try the Socrative Services, please contact info@showbie.com to discuss our trial options. If You are an active teacher or instructor, but do not belong to an Educational Institution, please contact info@showbie.com to discuss our trial options.

2.2 Fees. Showbie will invoice for all chargeable Services and timely payment must be made for access to the Services. Upon notice to You, Showbie reserves the right to change its price list for certain Services and to institute new charges at any time, which may be sent by email or posted on the Website. If You continue to use those Services after such notification, that use constitutes Your consenting to the new or increased charges. This Agreement does not include the provision by Showbie of any upgrades, updates, consulting services, customization or training. Such additional services may be available through separate agreements with Showbie.

2.3 Educational Users. The Services are designed for use by educators and parents/legal guardians in Educational Institutions. Representatives of a school board or Educational Institution or teachers in Educational Institutions will only

grant Access Codes to (i) personnel who are current employees of the organization; (ii) students who are currently enrolled and (in the case of minor students) who have been given permission by a parent/legal guardian, and (iii) parents/legal guardians of such minor students (collectively “Authorized Users”). As a representative of a school board or Educational Institution or as a teacher in a Educational Institution, You represent and warrant that: You have permission from Your school board or Educational Institution to enter into this Agreement and to use the Services as part of Your curriculum; You are over the age of majority; and You are entering this Agreement on behalf of Your school board or Educational Institution; and You have authority to bind such entity to the terms of this Agreement.

2.4 Student Users. The Services are also designed for use by student users at an Educational Institution. Minor students agree that they have obtained consent from a parent/legal guardian for their use of the Services in connection with educational uses. By using the Services, if You are a minor, You represent that You have obtained consent from Your parent/legal guardian who has read and agrees to this Agreement on Your behalf. If You do not obtain such consent, then You are not authorized to use the Services.

2.5 Other User Restrictions. If You are accessing the Services as a User, You acknowledge and agree that the content You contribute to the Services will be considered to be under Section 3.0 of this Agreement.

2.6 Intellectual Property. Showbie and its third-party licensors own any and all intellectual property rights and all right, title and interest in and to the Services (including free, public or beta portions of these) and any desktop interface or documentation which accompanies or interfaces with the Website or Application. Subject to Your payment of all applicable fees and these Terms, Showbie grants You a limited, non-exclusive license to download the Application, if relevant, and use the Services for Your legitimate educational purposes.

2.7 Trial Period, Public or Beta Usage. Any free, trial, public or beta portions of the Services are still subject to these terms, and in respect of those free, trial, public or beta portions of the Services, You bear the entire risk of use; such portions of the Services may be changed, suspended, blocked by Showbie at any time without notice to You.

2.8 Third-Party Content. From time to time, we may make certain third-party content available on the Website or Application or other Services, such as educational content or lesson plans.

(a) Some third-party content may be made available as a free download or as part of a free update for non-commercial use under Creative Commons or open-source license terms, and this type of content is not part of our chargeable Services. We do not charge any fee for the use of such third-party content, even though You may pay separately for other services or content from us.

(b) Other third-party content may be part of a paid download or upgrade, or made available as part of our chargeable Services.

In both cases (chargeable and non-commercial content), this third-party content remains the property of the third-party owners or licensors, and we do not claim to own this third-party content nor take responsibility for it. If any license terms apply to the third-party content, we will make reasonable efforts to make those license terms (or appropriate links or references) available to You. You agree to abide by any applicable license terms.

2.9 Codes. You are responsible for safekeeping any Access Codes made available to You to access the Services. You acknowledge and agree that sharing any Access Code or password with an unauthorized third-party is strictly forbidden. In no circumstances will Showbie be liable for any loss or damage of any kind incurred as a result of unauthorized access to the Services caused by sharing Access Codes.

2.10 Disclaimer regarding third party beneficiaries (Apple Inc. and Google Play. Be advised that Showbie in no way is affiliated with Apple Inc., Google Inc. or any of their respective subsidiaries (“Third-Party Beneficiary“), and that the Services are not endorsed, administered or sponsored by such Third-Party Beneficiary.

If you download the Application or use any Services on a platform or device provided by a Third-Party Beneficiary, the following applies:

Services should be used in line with the Apple Store and/or Google Play Terms of Service, including any associated terms such as the Google Play Business and Program Policies or such other terms designated as default end-user license terms by any Third-Party Beneficiary.

The Parties acknowledge that Third-Party Beneficiaries have no obligation to furnish any maintenance or support service with respect to Services.

The Parties acknowledge that Third-Party Beneficiaries bear no responsibility for any claims that the use of Services infringes the intellectual property rights of third parties.

The Parties acknowledge that Third-Party Beneficiaries bear no responsibility or liability related to compliance or non-compliance by Showbie or You (or any other user) under these Terms or the Third-Party Beneficiary's respective terms.The Parties acknowledge and agree that Third-Party Beneficiaries are beneficiaries of these Terms and will have the right (and will be deemed to have accepted the right) to enforce the Terms against You.

3.0 User Content

3.1 User Content. The Services may permit You to organize, upload and download content (including documents, images, and various digital content) through the Showbie servers. You represent and warrant that (a) You own or have all valid rights to such content that You organize, upload or download through the Services including any Personal Data; (b) such content will not infringe or breach any third-party rights including privacy rights; and (c) such content will not contain any materials that are unlawful, harmful, fraudulent, threatening, abusive, harassing, tortious, defamatory, vulgar, profane, pornographic, obscene, libelous, offensive, or otherwise objectionable; or promote discrimination, bigotry, racism, hatred, harassment or harm against an individual or group. You are responsible to ensure that any User Content you organize, upload or otherwise add through the Showbie Services comply with applicable accessibility standards and national requirements for universal design incl. current WCAG requirements. Showbie reserves the right to remove inaccessible User Content added by our users. You are solely responsible for any content or data that You organize, upload or download through the Services, including any consequences of making it available in connection with Your use of the Services. If You send us or provide access to Your content to others, e.g. creative ideas, plans or other materials, Showbie or others may copy it, modify it, or re-distribute it. Please consider carefully what You choose to share through the Services. Showbie has no responsibility for the activities of others.

3.2 User Postings. You hereby grant any user who can lawfully access the Services a non-exclusive license to access the content that You upload or messages that You may input through the Services, and to distribute and display such content in compliance with and any other agreement You have entered into with us. Furthermore, You acknowledge and agree that, with Your permission, Showbie also retains the right to distribute and display any such content as far as is necessary for us to deliver the Services and as part of normal operations related to the Services. We do not claim any ownership rights to Your content, and nothing in this Agreement will be deemed to restrict any rights that You may have to use and exploit Your content.

3.3 Monitoring & Take-Down. Showbie may, but have no obligation to, monitor or edit content that we determine in our sole discretion are unlawful, offensive, threatening, libelous, defamatory, pornographic, obscene or otherwise objectionable or violates any party's intellectual property or these Terms. Showbie reserves the right to suspend, block or remove any user content from the Services at any time, for any reason (including, but not limited to, receipt of third-party claims or allegations relating to such content or breach of this agreement or any other agreement with Showbie by You or Authorized Users). Under no circumstances will Showbie be liable for any loss or damage of any kind incurred as a result of the use of, access to, or denial of access to content.

3.4 Archiving & Security. You are responsible for archiving and data back-up for Your own purposes. You are responsible for security and encryption of any confidential or sensitive content or data.

4.0 Personal Data

4.1 Privacy Policy. Processing of Personal Data in relation to the Services is governed by the Socrative Privacy Policy

By using the Services, You confirm that you have read and understood the Socrative Privacy Policy. Showbie abides by applicable protection laws with respect to the handling of Personal Data. Showbie does not collect, use or disclose any Personal Data in connection with the Services, other than as described in this agreement, including the applicable Data Processing Addendum, or the Socrative Privacy Policy.

4.2 Confidentiality. All data and content organized, uploaded and download by You through the device is resident on the device until deleted by You. Showbie does not collect or retain any user-generated content or any uploads or downloads by You through the Services.

4.3 Data Processing Agreement. If You are the school board, Educational Institution or teacher who is the primary contracting party with us and Your students or other users are residents of the European Economic Area, You may be required to enter into a Data Processing Agreement with Showbie in order to use the Services.

5.0 Restrictions

5.1 Restrictions. You shall not, and shall not authorize any third-party to:

(a) make unauthorized copies of the Services;

(b) modify, decompile, disassemble, translate into another computer language, create derivative works, access the source code, hack, decrypt, rename files, or otherwise reverse engineer the Services;

(c) permit use of the Services by anyone other than Authorized Users;

(d) use any Access Codes or other access codes, other than the ones assigned by Your school board, Educational Institution or teacher;

(e) distribute Access Codes or other access codes to third-parties, or permit any third-party to use the Services other than Authorized Users;

(f) incorporate any portion of the Services into any products which will be sold, licensed or transferred to a third-party;

(g) distribute, sell, lease, transfer, assign, trade, rent, lease, lend or publish the Services or license, sublicense or cross-license it or any part thereof and/ or copies thereof to others;

(h) use the Services to upload, post or otherwise transmit any materials that are harmful, fraudulent, threatening, abusive, harassing, tortious, defamatory, vulgar, profane, pornographic, obscene, libelous, offensive, or otherwise objectionable; or that promote discrimination, bigotry, racism, hatred, harassment or harm against an individual or group; or that promote illegal or harmful activities or substances; or that have the effect of harassing or stalking any person, or otherwise offend the acceptable use standards set by Showbie;

(i) upload, post or otherwise transmit any content through the Services that:

(i) could in any way affect the functioning of the system, Service or any related website, including without limitation any computer virus, harmful, disruptive or destructive files, codes or computer programs or (ii) would impose an unreasonable or disproportionately large load on this system’s infrastructure;

(j) use the Services or any part thereof in violation of any law or regulation, or for any purpose other than as expressly permitted in this Agreement;

(k) distribute screen shots of the Services without Showbie’s approval.

5.2 Acceptable Use: The Services may be used only for legitimate purposes by users who have agreed to this Agreement. You must also abide by our acceptable use standards, and any acceptable use policy published by us from time to time. You may not:

(a) use the output of the Services for any purpose other than as required in connection with Your personal legitimate use in accordance with this Agreement;

(b) engage in linking or framing of any portion of our Services;

(c) aggregate, scrape, harvest or duplicate any portion of our Services, including any personal or contact information, or use such personal or contact information for any secondary marketing purposes or unsolicited mass e-mail, or any purpose inconsistent with the purposes of the Services;

(d) corrupt, falsify or distort any content on the Services.

(e) abuse our refund policy/subscription trials e.g., by repeatedly purchasing a subscription and requesting a refund within the stated 30 days.

5.3 Circumvention Prohibited. You specifically agree not to, in any way access (or attempt to access) a third-party database by any unauthorized or automated means, other than through lawfully accessing the servers and interface that is provided by Showbie through the Services.

5.4 Discontinuation of Service. You have the right to limit the provision of your products to geographic regions or jurisdictions and to discontinue any Product at any time.

6.0 Limitation of Liability & Disclaimer of Warranty

6.1 Disclaimer. The Services are provided “AS IS” without warranties, conditions or representations of any kind, and Showbie expressly disclaims, to the fullest extent permitted by applicable law, any warranty or condition, express or implied, statutory or otherwise, whether arising from trade or course of dealing, including, without limitation, any warranty or condition that the Services (a) shall correspond with a particular description, (b) are of merchantable quality, (c) are fit for Your particular purpose, (d) are durable for a reasonable period of time, (e) do not and will not infringe any patent, trade-mark, trade-secret or other intellectual property or other proprietary rights of any third party, (f) are bug or error free, uninterrupted, timely or secure, or (g) are accessible through all devices.

You acknowledge that entry, conversion and storage of data is subject to human and machine error and Showbie is not responsible for such errors. Showbie is not responsible for third-party hardware or software, or for cell, wi-fi or other service providers. Showbie does not warrant that the Services will be compatible with all platforms which may now or in the future be used.

6.2 Allocation of Risk. Showbie shall not be liable for any monetary damages whatsoever with respect to Your use of the Services hereunder (or use by Your Authorized Users, if applicable), nor shall Showbie be liable for any indirect, incidental, consequential, special, punitive or exemplary damages arising out of this Agreement, even if Showbie is advised of the possibility of such damages. The entire risk as to the results and performance of the Services is assumed by You and You agree to implement and adopt reasonable measures to examine and confirm results prior to use, to save data, and limit exposure to errors and failures in data.

6.3 Limitation of Liability. The total liability of Showbie, Showbie’s directors, officers, employees, affiliates, agents, contractors, interns, suppliers, service providers, or licensors, whether under the express or implied terms of this Agreement, in tort (including negligence or other duty of care) or at common law, for any loss or damage including but not limited to any data loss or corruption, suffered by You or any Authorized Users or third-parties, whether direct, indirect or special, or any other similar damage that may arise or does arise from use of the Services or any breach of this Agreement by Showbie, shall in no event exceed the amount paid by You to Showbie for the Services. These limitations of liability shall survive failure of any exclusive remedies provided in the agreement.

7.0 Indemnity

7.1 Indemnity. You indemnify, hold harmless and defend Showbie, Showbie’s parent, subsidiaries, affiliates, partners, officers, directors, agents, contractors, licensors, service providers, subcontractors, suppliers, interns, and employees against any and all third-party claims (including all associated legal fees and disbursements actually incurred) against Showbie arising out of a breach by You of the obligations under this Agreement, or the use or misuse of the Services by You (or Your Authorized Users, if applicable).

8.0 Term & Termination

8.1 Termination Rights.

(a) By Us: In the event You breach this Agreement or any other agreement with us, and such breach is not remedied or cured within 10 days of written notice, Showbie may suspend or terminate this Agreement and Your access to the Services. If you materially breach this Agreement, Showbie can terminate the Agreement with You with immediate effect. If Your employer, school board or Educational Institution under which You access the Services is in breach of any agreement with us, or the subscription term has expired, we may suspend or terminate this Agreement and Your access to the Services. Nonpayment of agreed fees may result in account deactivation and consequently termination. Payment obligations and refunds in case of termination are set out in our invoices.

(b) By You: You may shut down Your account and cease use of the Services at any time. We require reasonable written notice from You, to implement our standard security and data-handling policies. You are responsible for backing-up, saving, downloading or deleting any of Your content and Personal Data, as You wish, prior to the termination of Your account. After termination, we reserve the right to delete any content or Personal Data remaining on our servers.

(c) By Your Employer/School Board/Educational Institution: Your employer, school board or Educational Institution may shut down or suspend Your account access as part of their management of the relationship with You or in the event of termination or expiry of Your employment or enrolment.

9.0 Governing Law & Disputes

9.1 Governing Law. This Agreement is governed by the laws of the Province of Alberta, Canada without regard to its conflict of laws rules.

9.2 Arbitration Agreement. You agree that all disputes arising out of or in connection with this Agreement, or in respect of any legal relationship associated with or derived from this Agreement, shall be arbitrated and finally resolved, pursuant to the National Arbitration Rules of the ADR Institute of Canada, Inc. The place of arbitration shall be Edmonton, Alberta, Canada. The language of the arbitration shall be English. Arbitration fees and reasonable attorneys' fees of both parties to be borne by the party that ultimately loses. The award rendered by the arbitrator shall be final and binding, and judgment may be entered upon it in any court having jurisdiction thereof.

9.3 Exception from Arbitration Agreement: Either party may obtain injunctive relief (preliminary or permanent) and orders to compel arbitration or enforce arbitral awards in any court of competent jurisdiction.

9.4 EU/EEA Consumer disputes: If You are a consumer residing in the EU or EEA, and are discontent with Showbie's treatment of Your complaint(s), you should always consider getting in touch with your country's consumer dispute resolution body for advice. Alternatively (and in addition), we recommend submitting a complaint via the European Commission's platform for online dispute resolution ("ODR"), available at http://ec.europa.eu/consumers/odr/.

The ODR platform is a point of contact for out-of-court settlement of disputes arising from online services and purchasing processes. Include the following e-mail address when submitting an ODR complaint: privacy@socrative.com.

10.0 General Terms

10.1 Assignment. You will not assign, transfer, encumber or otherwise dispose of any or all of the rights granted to You under this Agreement without the prior written consent of Showbie. Showbie may assign this Agreement to a third-party.

10.2 Enurement. Subject to the limitations in this Agreement, this Agreement operates for the benefit of and is binding on the parties and their respective successors and permitted assigns.

10.3 No Waiver. No condoning, excusing or overlooking by any party of any default, breach or non-observance by any other party at any time regarding any terms of this Agreement operates as a waiver of that party's rights under this Agreement. No exercise of a specific right or remedy by any party precludes it from or prejudices it in exercising another right or pursuing another remedy or maintaining an action to which it may otherwise be entitled either at law or in equity.

10.4 Survival. All terms which require performance by the parties after the expiry or termination of this Agreement, will remain in force despite this Agreement's expiry or termination for any reason. The following terms shall survive termination: 2.6, 2.09, 5.0, 6.0, 7.0, 9.0 and 10.0.

10.5 Severability. Part or all of any section that is indefinite, invalid, illegal or otherwise voidable or unenforceable may be severed and the balance of this Agreement will continue in full force and effect.

10.6 Entire Agreement. The Agreement, the applicable Data Processing Addendum and any mobile app terms set forth the entire understanding between the parties related to the Services, and replaces all prior versions.

10.7 Software & Hardware. You must provide Your own computer hardware and software necessary to connect to the Services, including internet access and if applicable, a suitable mobile device, according to the optimal use standards and specifications we stipulate from time to time. The Services may experience temporary downtime as we perform routine maintenance or updates.

10.8 Linked Sites. Links available on the website may link to third-party websites not maintained or controlled by us and we provide these links for Your convenience, and Showbie is not responsible for the contents of any linked site.

10.9 Changes. On release of any update or upgrade to the Services, Showbie reserves the right to modify this Agreement and to impose new or additional terms or conditions on Your use of the Services. The then-current terms (including any modifications and additional terms and conditions if applicable) will be presented to You and will be effective immediately upon Your acceptance of the terms and continued use of the Services.

10.10 Language. It is the express will of the parties that this Agreement and all related documents be drawn up in English. C'est la volonté expresse des parties que la présente convention ainsi que les documents qui s'y rattachent soient rédigés en anglais.

10.11 Electronic Acceptance. This Agreement may be agreed to by electronic acceptance.

10.12 Contact. If You have questions about these terms or wish to contact Showbie for any reason, please contact us at: Showbie Inc. #436, 3428–99 Street N.W.Edmonton, AB, Canada T6E 5X5;

Email : privacy@socrative.com.

Last updated : July 7, 2025